

25STCV35174 25STCV35174

County: los-angeles

Division: Civil Law and Motion

Department: 836

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C836%2C08%2F11%2F2026

Source SHA-256: 2f4cd992407ae30b31c0167194376c363124e52ffa9b67563ea55c45badae7cc

Case Number: 25STCV35174 Hearing Date: August 11, 2026 Dept: 836

OX BIOMED LLC,

Plaintiff,

Case No.

25STCV35174

vs.

DAVID FELDMAR, et al.,

Defendants.

[TENTATIVE] RULING ON APPLICATION FOR RIGHT TO
ATTACH ORDER

Dept. 836 (Hon. Curtis A. Kin)

Plaintiff OX Biomed LLC requests

that the Court issue a right to attach order as to defendant David Feldmar in
the amount of \$9,221,423.94. For the
reasons that follow, plaintiff's application is DENIED.

I. BACKGROUND

A. Factual Background

Plaintiff

OX Biomed LLC sells human cell, tissue, and xenograft products ("Products") for the treatment of serious injuries, burns and wounds. (Sutherland Decl. ¶ 4.) According to plaintiff, it entered into a Service Agreement with defendant David Feldmar, dba Feldmar Aesthetics, on January 27, 2025, pursuant to which defendant agreed to purchase plaintiff's Products. (Sutherland Decl. ¶ 4 & Ex. 1.) Plaintiff further represents that Feldmar Aesthetics is defendant's fictitious business name for his medical practice and that the Service Agreement was signed by defendant in his individual capacity. (Sutherland Decl. ¶¶ 3, 5.)

Plaintiff claims that, during the period from January 27, 2025 through March 26, 2025, defendant, doing business as Feldmar Aesthetics, ordered \$12,779,011.78 worth of Products. (Sutherland Decl. ¶ 8.) Plaintiff received payments for a certain set of invoices totaling \$3,557,577.84 but not for invoices that totaled \$9,221,423.94. (Sutherland Decl. ¶ 8 & Exs. 3-5.) Plaintiff indicates that, in July 2025, Cole MacPherson, who is associated with defendant, requested the account to be changed from Feldman Aesthetics to "Feldmar Medical Corporation." (Sutherland Decl. ¶ 9; see also MacPherson Decl. ¶¶ 11-12 & Exs. 1-2.) In August 2025, plaintiff indicated to MacPherson and Danny Gefen, who is also associated with defendant, that the account would be changed only if plaintiff received weekly payments of \$500,000 towards the outstanding balance. (Sutherland Decl. ¶¶ 11-12 & Ex. 6.) On August 21, 2025, plaintiff requested that defendant provide a proposal for payment of the outstanding invoices but never received a response. (Sutherland Decl. ¶ 13 & Ex. 7.) The balance of \$9,221,423.94 remains outstanding. (Sutherland Decl. ¶13.)

According to defendant, Feldmar Aesthetics is the fictitious business name for Feldmar Cosmetic Inc., which provides plastic surgery procedures, and Feldmar Cosmetic Inc. did not purchase Products from plaintiff. (Feldmar Decl. ¶¶ 7-9, 37 & Ex. 1.) Defendant further represents that he has a separate business, Feldmar Medical Corporation ("FMC"), which provides wound care surgical medical services to patients. (Feldmar Decl. ¶¶ 10, 12.) In January 2025, defendant spoke with Will Shiebler, who is plaintiff's sales representative, about the benefits of plaintiff's Products. (Feldmar Decl. ¶¶ 14-16.) Defendant informed Shiebler that FMC would be the purchaser for the Products. (Feldmar Decl. ¶¶ 17-19.) Defendant admits signing the Service Agreement but states that he had not realized that it incorrectly identified the customer as Feldman Aesthetics. (Feldmar Decl. ¶¶ 21-25 & Ex. 2.) Defendant claims that he told Shiebler of

the error and requested that the documents be corrected. (Feldmar Decl. ¶ 25.) Defendant claims that Shiebler represented that the documents would be corrected and resubmitted for signature. (Feldmar Decl. ¶ 27.) Defendant also represents that, on January 31, 2025, a Business Associate Agreement (“BAA”) was provided by plaintiff to FMC and that defendant executed the BAA as an officer of FMC. (Feldmar Decl. ¶ 29 & Ex. 3.) Per the BAA's preamble, the BAA is made part of the agreements existing between the parties. (Feldmar Decl. ¶ 30 & Ex. 3 at pg. 1.)

Defendant presumed that the documents would be corrected because the BAA included the corrected customer information. (Feldmar Decl. ¶ 33.) However, by April or May 2025, FMC's COO MacPherson informed defendant that a corrected Service Agreement was never provided. (Feldmar Decl. ¶ 34; MacPherson Decl. ¶ 7.) All payments were made by FMC. (MacPherson Decl. ¶¶ 15-17 & Exs. 3-4.)

B. Procedural Background

On December 2, 2025, plaintiff initiated this breach of contract action against defendant. On December 22, 2026, plaintiff filed the instant application for writ of attachment. On July 28, 2026, defendant filed its opposition. Per CCP § 484.060, plaintiff was required to file a reply by July 31, 2026, but no such reply was filed. Even though on August 3, 2026 the Court on its own motion continued the hearing on the instant application from August 4, 2026 to August 11, 2026, the Court ordered that the briefing remain as scheduled in accordance with the original hearing date.

II. ANALYSIS

A. Legal Standard

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply . . . for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (CCP § 484.010.) The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a

statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. § 101, et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The Court shall issue a right to attach order if it finds all of the following:

(1) The claim upon which the attachment is based is one upon which an attachment may be issued.

(2) The plaintiff has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.

(CCP § 484.090(a)(1-4).) "The Attachment Law statutes are subject to strict construction...." (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

B. Analysis

1.

Basis of Attachment

"[A]n

attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (CCP § 483.010(a).)

Plaintiff's

breach of contract claim against defendant is based on the Service Agreement. (Sutherland Decl. ¶¶ 4-5 Ex. 2.) Plaintiff has shown that its claim is for a fixed amount of \$9,221,423.94. (Sutherland Decl. ¶ 8 & Exs. 4-5.) Defendant does not dispute that plaintiff's claim is the type upon which an attachment may be issued. Rather, defendant asserts that he is not a proper party to the Service Agreement, as discussed below.

Accordingly,

plaintiff demonstrates a valid basis for attachment pursuant to the Service Agreement.

2.

Probable Validity of Plaintiff's Claims

"A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (CCP § 481.190.) "If the defendant opposes the application, 'the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.' [Citations.]" (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

Plaintiff's application for attachment is

based on its breach of contract claim. The elements for a breach of contract are: (1) the existence of a contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach of the contract, and (4) the resulting damages to the plaintiff. (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Based

on the record before the Court, it is unclear whether a contract exists between plaintiff and defendant David Feldman. The two interrelated agreements before this Court—i.e., the Service Agreement and the BAA—provide contradictory information as to who are the contracting parties. The initial Service Agreement states that Feldman Aesthetics is the customer and was signed by defendant in his individual capacity. (Sutherland Decl., Ex. 1.) By contrast, the BAA, which states that it was made part of the existing contractual agreements between the parties, identifies FMC as the customer and was signed by defendant on behalf of FMC. (Feldman Decl., Ex. 3.)

In

addition, the record does not support plaintiff's contention that defendant failed to disclose that FMC was the intended contracting party, thereby purportedly creating personal liability for defendant Feldmar as the agent of the undisclosed principal. As attested by Feldmar, he informed plaintiff's sales representative that FMC would be the purchaser, and, after learning of the mistake in the Service Agreement, he requested that the agreement be updated and corrected. (Feldmar Decl. ¶¶ 16-18, 25-27; see also MacPherson Decl. ¶¶ 7-8.) Notably, plaintiff has not proffered the declaration of the sales representative to rebut defendant's evidence. Defendant further attests that, before any orders could be approved, FMC provided to plaintiff its patient demographic and insurance eligibility information. (Feldmar Decl. ¶¶ 19, 31.) Taken together, this evidence suggests that defendant disclosed FMC's identity to plaintiff and is thus not personally liable for the amount due under the Service Agreement. (See *W.W. Leasing Unlimited v. Commercial Standard Title, Inc. Co.* (1983) 149 Cal.App.3d 792, 796 [citing 3 Am. Jur. 2d Agency, § 320, pp. 676 – 678].)

Accordingly,
because questions exist as to whether an agreement exists between the parties, plaintiff has not demonstrated the probable validity of its breach of contract claim against defendant Feldmar.

III. CONCLUSION

The application for a writ of attachment against defendant David Feldmar is DENIED.